

1 AN ACT relating to highway access.

2 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

3 ➔Section 1. KRS 177.240 is amended to read as follows:

4 **(1)** The **Transportation Cabinet and any** highway authorities of ~~a~~~~[the state,]~~ county
5 ~~or~~~~[,]~~ city~~[, and town]~~ are authorized to~~so~~ design any limited access facility and
6 to~~so~~ regulate, restrict, or prohibit access as to best serve the traffic for which
7 ~~the~~~~[such]~~ facility is intended, and its determination of ~~the~~~~[such]~~ design shall be
8 final.

9 **(2)** **In exercising its powers under subsection (1) of this section, the cabinet or county**
10 **or city highway authority may:**~~[In this connection, such highway authorities are~~
11 ~~authorized to.]~~

12 **(a)** Divide and separate any limited access facility into separate roadways by the
13 construction of raised curbing, central dividing sections, or other physical
14 separations; **and**

15 **(b)** **Designate these**~~[, or by designating such]~~ separate roadways by **using** signs,
16 markers, stripes, and **other traffic control devices to identify** the proper lane
17 for~~[such]~~ traffic~~[by appropriate signs, markers, stripes, and other devices].~~

18 **(3)** **(a)** ~~A~~~~[No]~~ person shall **not** have any right of ingress or egress to, from, or across
19 limited access facilities to or from abutting lands, except:

20 **1.** At such designated points at which access may be permitted; **and**

21 **2.** **Subject to the limitations in paragraph (b) of this subsection,** upon
22 such terms and conditions as may be specified **by the cabinet or county**
23 **or city highway authority that maintains the limited access**
24 **facility**~~[from time to time].~~

25 **(b)** **The cabinet or county or city highway authority that maintains a limited**
26 **access facility, in granting access to a limited access facility, shall not**
27 **require the property owner to pay compensation for any increase in value to**

- 1 *the affected property attributable to the new access based on before and*
- 2 *after property appraisals.*